



Authority Support Required

1 assets are awaiting your Letters of Authority to finalize ownership. These assets require probate authority to complete the transfer process.

[FINALIZE DOCUMENTS](#)

[View Asset List](#) →

Strategic Assessment
SECURE & NOTIFY
DEATH TO FILING

Petition & Authority
OBTAINING POWERS
AFTER PETITION FILED

Asset Discovery
INVENTORY & APPRAISAL
AFTER LETTERS ISSUED

Creditor Claims
NOTICE & PRIORITY
AFTER LETTERS ISSUED

Asset Liquidation
TRANSFER & SELL
MONTH 6–12

Strategic Assessment
Secure & Notify • Death to Filing

Petition & Authority
Obtaining Powers • After Petition Filed

Asset Discovery
Inventory & Appraisal • After Letters Issued

Creditor Claims
Notice & Priority • After Letters Issued

Asset Liquidation
Transfer & Sell • Month 6–12

Final Distribution
Estate In Closing • Month 6–12



Strategic Assessment CURRENT

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Preliminary Asset & Liability Scan NEXT STEP

Identify known bank accounts, real estate, and major debts. This data is critical for estimating estate value on the petition and determining bond requirements.



Evaluate Small Estate Eligibility OPTIONAL

Determine if total assets are under the state's small estate threshold. This may allow for a simplified Affidavit process, bypassing full probate.



Confirm Executor/Trustee Role

Review the Will or Trust to confirm your appointment and willingness to serve.

[Profile Settings](#)



Secure the Property

Change locks, forward mail, and ensure the home is protected from theft or damage.

Upload Photos

☐ Initial Property Protection

Ensure the decedent's residence is secured, mail is forwarded, and assets are protected from loss or damage.

☐ Notify Social Security Administration

Report the death to stop benefit payments and prevent overpayment recovery.

☒ Death Certificate Obtained



Report Death to SSA

☐ Cancel Credit Cards & Subscriptions

Stop recurring charges and prevent identity theft by closing accounts.

Manage Accounts

☐ Manage Utilities

Review decedent's utility accounts (electricity, water, gas).

☐ Conduct Genealogical Search OPTIONAL

If heirs are unknown or missing, you must perform a formal search to identify all legal beneficiaries. This is required for your final distribution decree.

☐ Locate Important Documents (Intestate) OPTIONAL

Since there is no Will, search for insurance policies, real estate deeds, and final account statements to inventory the estate.

Upload Documents

☐ Establish Estate Financial Account

Open a separate fiduciary account for estate income and expenses once legal authority is obtained.

☒ Death Certificate Obtained



Upload Letters of Authority

Upload EIN

☐ Managed Payment of Immediate Bills

Prioritize current utilities, mortgage, and insurance to protect the value of estate assets.

Track Bills

☐ Obtain EIN for the Estate

Apply for an Employer Identification Number from the IRS. This unique ID is required to open an estate bank account and for all tax filings.

Upload IRS Form SS-4

Apply for EIN Online (IRS)

☐ File IRS Form 56 (Notice of Fiduciary)

Formally notify the IRS that you have taken on the role of Executor/Administrator. This ensures that all tax correspondence regarding the decedent is sent to you.

Upload IRS Form 56

Upload Certified Letters of Authority

Download IRS Form 56

☐ Confirm U.S. Legal Representative

Decide if you will hire a U.S. probate attorney or appoint a local co-executor/agent to handle on-the-ground tasks.

○ **Verify Notarization Rules (Apostille)**

Check if your current country of residence is a member of the Hague Apostille Convention. This determines how documents signed abroad must be authenticated for U.S. court

 Check HCCH Member States

 **UPLOAD MISCELLANEOUS**

○ **Court Compliance & Eligibility**

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○ **Validate Venue and Jurisdiction**

Confirm the decedent's legal domicile and county residency to ensure the petition is filed in the legally appropriate court.

○ **Screen Fiduciary Eligibility**

Verify that the proposed executor or administrator meets all state-specific legal requirements to serve.

○ **Validate Interested Parties**

Identify all individuals legally entitled to notice or inheritance, including heirs-at-law, beneficiaries, and devisees.

○ **Prepare Required Notices and Waivers**

Generate the formal notice plan to serve interested parties, or gather Signed Waivers and Consents to expedite the process.

○ **Evaluate Need for Temporary Authority**

Determine if preliminary letters or special administration is necessary to protect assets or run a business while formal probate is pending.

○ **Calculate Court Filing Fees**

Determine the exact statutory filing fee based on the estimated gross value of the probate estate.

○ **Compile Required Court Form Packet**

Synthesize the official local forms and procedural filing notes required by your specific court into a ready-to-file package.

 **UPLOAD MISCELLANEOUS**

○ **Petition & Authority**

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○ **Pay Court Filing Fee**

 LOCKED

Pay the required court filing fee to process the petition. Fees vary by estate value.

○ **Submit Oath and Designation**

 LOCKED

Sign and submit the Oath and Designation form, officially agreeing to serve as the fiduciary.

○ **Obtain Citation from Court**

 LOCKED

Receive the issued Citation from the court, which sets the hearing date and commands interested parties to appear.

☐ **Serve Citation on Interested Parties** LOCKED

Serve the Citation to all required heirs and interested parties according to strict statutory rules.

☐ **Attend Administration Hearing** LOCKED

Appear in court for the administration hearing. Since there is no Will, the court will confirm heirs and appointing you as Administrator.

☐ **Obtain Letters of Administration** LOCKED

Once the court approves the petition, obtain certified copies of your Letters of Administration.

☐ **File Spousal Property Petition**

Request court order to transfer property to surviving spouse without full probate.

Death Certificate Obtained



Upload Petition Form

Start Spousal Path

☐ **Give Notice of Hearing** OPTIONAL LOCKED

Notify all interested parties about the court hearing date for the petition.

☐ **Obtain Spousal Property Order** OPTIONAL LOCKED

Receive signed court order confirming property ownership transfer to spouse. Record with county recorder if real estate is involved.

☐ **Issue Certificate of Trust** OPTIONAL

Formalize successor trustee authority for trust-held assets.



Upload Trust Agreement

☐ **Obtain Business Operating Authority**

If the decedent owned a business, you may need a court order to continue operations and pay employees.

☐ **Avoid Bond Cost** LOCKED

Obtain signatures from all heirs to waive the bond requirement, then file the completed waiver with the court.



UPLOAD MISCELLANEOUS

☐ **Asset Discovery**

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Letters of Administration required

Upload Documents →

☐ **Creditor Claims**

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☐ **FIDUCIARY RISK: Statutory Debt Priority**

Evaluate claims according to legal priority (e.g., administration costs, taxes, then general debts).

☐ **Publish Creditor Notice** Check Deadline LOCKED

Publish notice in a local newspaper for the statutory required duration to notify creditors.

☐ Mail Notice to Known Creditors LOCKED

Send formal notice to all known creditors (banks, credit cards, medical providers).

☐ International Fiduciary: W-8BEN/W-8CE Assessment

For non-resident executors or beneficiaries, determine U.S. tax withholding requirements and treaty eligibility.

☐ International Fiduciary: ITIN Acquisition Protocol

Identify foreign beneficiaries without a SSN/ITIN. Coordinate acquisition of U.S. Individual Taxpayer Identification Numbers to avoid maximum backup withholding on distribution

☐ Evaluate Estate Solvency

Compare total assets to total liabilities and funeral/admin expenses.

☐ Wait for 4-Month Claim Period LOCKED

Creditors have 4 months from publication of the creditor notice to file claims against the estate.

☐ Review Submitted Claims

Examine each creditor claim for validity, amount, and supporting documentation.

Review Claims

☐ Document Claim Evaluation & Decision

Formally evaluate each timely creditor claim. Document whether the claim is allowed in full, partially allowed, or rejected.

☐ Reject Invalid Claims

File formal rejections for claims that are incorrect, unsupported, or time-barred.

Upload Notice of Allowance or Rejection

☐ Pay Approved Claims LOCKED

Pay valid debts in order of priority (funeral, taxes, secured debts, then unsecured).

☐ File Proof of Notice LOCKED

Submit proof that you properly notified all creditors.

UPLOAD MISCELLANEOUS

☐ Asset Liquidation

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☐ Obtain Court Approval for Minor Distributions

Distributions to minors usually require a guardianship or court order to be placed in a blocked account.

☐ Present Letters to All Institutions

Submit certified Letters of Authority to every bank, brokerage, and insurance company.

Death Certificate Obtained



Upload Letters of Authority

☐ **Transfer Financial Accounts** 🔒 LOCKED

Move stocks, bonds, and cash to estate account or directly to beneficiaries.

☐ **Prepare Notice of Proposed Action**

If you have independent administration authority, you must notify heirs of your intent to sell real property.

Upload Notice of Proposed Action Form

About Notices of Proposed Action

Authorization

☐ **Wait for 15-Day Objection Period** 🔒 LOCKED

Mandatory waiting period after serving Notice of Proposed Action to allow heirs to respond or object.

☐ **File Petition to Confirm Sale**

If you do NOT have independent administration authority, or if someone objects, you must petition the court to confirm the sale of real property.

Upload Petition to Confirm Sale Form

About Sales Confirmation

File Petition

☐ **Obtain Sale Confirmation Order** 🔒 LOCKED

Receive signed court order confirming the real estate sale and allowing the close of escrow.

☐ **Complete Property Sale & Close Escrow** 🔒 LOCKED

Finalize the sale of real estate, sign closing documents, and receive sale proceeds into the estate account.

☐ **File Form 1041 (Fiduciary Income Tax)**

Report income, deductions, and credits for a trust or estate that has gross income of \$600 or more in a tax year.

☐ **Issue Schedule K-1 to Beneficiaries**

Provide beneficiaries with their share of income, deductions, and credits to report on their individual tax returns.

☐ **Pay Final Taxes** 📅 Check Deadline

File final individual 1040, estate 1041, and any estate tax returns.

Upload All Tax Documents

☐ **Prepare Final Accounting** 🔒 LOCKED

Document all income, expenses, and distributions for court review.

UPLOAD MISCELLANEOUS

☐ **Final Distribution**

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Complete liquidation first

View Assets →